



**BRECKSVILLE-BROADVIEW HTS.
CITY SCHOOL DISTRICT**

"where fine education is a heritage"

Book	Policy Manual
Section	10/02/2019
Title	USE OF TOBACCO
Code	po5512
Status	First Reading
Adopted	July 23, 2007
Last Revised	June 25, 2018

5512 - USE OF TOBACCO

The Board of Education is committed to providing students, staff, and visitors with a tobacco and smoke-free environment. The negative health effects of tobacco use for both users and nonusers, particularly in connection with second hand smoke, are well established. Further, providing non-smoking and tobacco-free environment is consistent with the responsibilities of teachers and staff to be positive role models for our students. The District may reinforce the negative effects of tobacco use through class discussion programs and presentations as deemed appropriate.

For purposes of this policy, "use of tobacco" means to chew or maintain any substance containing tobacco, including smokeless tobacco, in the mouth to derive the effects of tobacco, as well as all uses of tobacco or tobacco substitutes, including cigars, cigarettes, pipe tobacco, chewing tobacco, snuff any other matter or "vapor," or other substitute forms of cigarettes, clove cigarettes and any other lights smoking device for burning tobacco or any other substance.

The term "tobacco" includes any product that contains tobacco, is derived from tobacco, contains nicotine, or e-cigarettes and other electronic smoking devices (including but not limited to "JUULs"), but does not include any cessation product approved by the United States Food and Drug Administration for use as a medical treatment to reduce or eliminate nicotine or tobacco dependence.

In order to protect students and staff who choose not to smoke or use tobacco from an environment noxious to them, the Board prohibits the possession, consumption, purchase or attempt to purchase and/or use of tobacco or tobacco substitute products by students at all times

(twenty-four (24) hours a day, seven (7) days a week)

on Board premises, in Board-owned vehicles, with any facility owned or leased or contracted for by the Board, and/or used to provide education or library services to children, and at all Board-sponsored events at all times.

This prohibition extends to any Board-owned and/or operated vehicles used to transport students and to all other Board-owned and/or operated vehicles. Such prohibition also applies to:

- school grounds,
- athletic facilities, and
- any school-related event,
- on or off Board premises.

Advertising/Promotion

In accordance with Policy 9700.01, tobacco advertising is prohibited on school grounds, in all school-sponsored publications, and at all school-sponsored events.

Tobacco promotional items that promote the use of tobacco products, including clothing, bags, lighters, and other personal articles are not permitted on school grounds, in school vehicles, or at school-sponsored events.

Notification

"No Tobacco" signs will be posted throughout the District as required by R.C. 3794.06 and as specified by the Ohio Department of Health. Students will be provided notice of this policy through student handbooks.

District vehicles will display the international "No Smoking" insignia.

Announcements will be made during home athletic events both before the event and during intermission, as well as at all school functions where deemed appropriate.

School programs will include a written reminder of the tobacco-free policy.

Educational Programming

Tobacco-use prevention education shall be coordinated with the other components of the school health program. Staff responsible for teaching tobacco-use prevention education shall have adequate pre-service training and participate in ongoing professional development activities to effectively deliver education programming. Preparation and professional development activities shall provide basic knowledge about the effects of tobacco use and effects of peer pressure on tobacco use combined with effective instructional techniques and strategies and program-specific activities.

~~This includes athletic grounds, parking lots during school hours and non-school hours.~~

Students who violate this policy shall be subject to disciplinary action in accordance with the Student Code of Conduct/Student Discipline Code and in accordance with policies of the Board.

Revised 5/23/11

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Legal

R.C. 3313.20, 3313.47, 3313.66, 3313.751, 2151.87

20 U.S.C. 6081 et seq., 20 U.S.C. 7182